Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands within the national forests hereafter designated are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, nor the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604), and reserved for use of the Forest Service as an administrative site, and recreational area, as indicated:

[Wyoming 040577]

SIXTH PRINCIPAL MERIDIAN

BIG HORN NATIONAL FOREST—BIG GOOSE ADMINISTRATIVE SITE

T. 53 N., R. 86 W.,
Sec. 3, lot 8;
Sec. 4, lot 5.
T. 54 N., R. 86 W.,
Sec. 33, S½SE¼SE¼;
Sec. 34, lot 4.

The areas described aggregate 92.54 acres.

[BLM 044496]

FIFTH PRINCIPAL MERIDIAN

OUCHITA NATIONAL FOREST—MINE CREEK RECREATION AREA

T. 3 S., R. 28 W.,
Sec. 31, S½;
Sec. 32, SW¼.

The areas described aggregate 504.22 acres.

The total area described aggregates 596.76 acres.

This order shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

ROYCE A. HARDY,
*Assistant Secretary of the Interior.*

DECEMBER 6, 1957.

[F. R. Doc. 57–10246; Filed, Dec. 11, 1957; 8:46 a. m.]

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[Public Land Order 1561]

[116245]

FLORIDA

WITHDRAWING PUBLIC LANDS FOR USE OF DEPARTMENT OF THE AIR FORCE FOR MILITARY PURPOSES; REVOKING EXECUTIVE ORDER NO. 3671 OF MAY 8, 1922, WHICH WITHDREW LANDS FOR LIGHTHOUSE PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Florida are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral-leasing laws, but excepting disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) as amended, and reserved for use of the Department of the Air Force as part of Tyndall Air Force Base:

TALLAHASSEE MERIDIAN

T. 5 S., R. 14 W.,
Sec. 11, fractional.

The tract described contains 14.35 acres.

2. It is the intent of this order that the withdrawn minerals in the lands shall remain under the jurisdiction of the Department of the Interior, and no disposition shall be made of such minerals except under the applicable United States mining and mineral-leasing laws, and then only after such modification of the provisions of this order as may be necessary to permit such disposition.

3. Executive Order No. 3671 of May 8, 1922, which withdrew the land for lighthouse purposes, is hereby revoked.

ROYCE A. HARDY,
*Assistant Secretary of the Interior.*

DECEMBER 6, 1957.

[F. R. Doc. 57–10247; Filed, Dec. 11, 1957; 8:46 a. m.]

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[Public Land Order 1562]

[1065857]

SOUTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 3297 OF JULY 21, 1920

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3297 of July 21, 1920, which withdrew the following-described public lands in South Dakota for examination as to their availability for a permanent reservation for preservation of fossil cycad deposits, is hereby revoked:

BLACK HILLS MERIDIAN

T. 7 S., R. 3 E.,
Sec. 35, SW¼NE¼, SE¼, E½SW¼, and SW¼SW¼.

The areas described aggregate 320 acres.

2. The lands are located approximately 14 miles west of Hot Springs, South Dakota, and about one-half mile west of U. S. Highway 18 (alternate 85A). The area is accessible by means of an unimproved dirt road, and has an elevation of about 4,500 feet. The terrain is undulating to rough, and three small canyons dissect the tract in a southeasterly direction. Soils are clay to silty clay in texture, varying from shallow depth on the upper slopes to medium depth in the bottom of the draws. A small area of approximately five acres in the north central portion is more level.

3. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on January 11, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on April 12, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on April 12, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands will be open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws beginning at 10:00 a. m., on April 12, 1958. Applications and offers under the mineral-leasing laws filed on or before 10:00 a. m., on that date will be considered as simultaneously filed at that time. Applications filed thereafter will be considered in the order of filing. Mining locations made prior to that date and subsequent to October 21, 1922, are invalid. If any excavations on such lands for the recovery of fissionable materials or any other minerals uncover fossil remains, such remains shall become the property of the United States as provided by the act of August 1, 1956 (70 Stat. 898).